CAMDEN COUNTY, NJ
CAMDEN COUNTY CLERK'S OFFICE
DEED-OR BOOK 09476 PG 0462
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RECORDING FEES 93.00
MARGINAL NOTATION 0.00

Prepared by:

Damien O. Del Duca, Esquire

CONFIRMATORY DEED

THIS CONFIRMATORY DEED is made as of June 13, 2011.

BETWEEN

Gitomer & Martin, a New Jersey General Partnership, also known as Gitomer-Martin Properties, having an address at PO Box 424, Mt. Laurel Township, Burlington County, New Jersey, referred to as the "Grantor";

AND

Irving Gitomer, having an address at, 301 Browning Lane, Unit 50, Cherry Hill Township, Camden County, New Jersey, referred to as the "Grantee".

Transfer of Ownership. Grantor grants and conveys (transfers ownership of) the property described below to Grantee. This transfer is made for the sum of One and 00/100 Dollars ($1.00). Grantor acknowledges receipt of this money.

Tax Map Reference. The Property being transferred hereby consists of certain real property located in the Township of Cherry Hill, Camden County, State of New Jersey and is designated on the Municipal Tax Map of the Township of Cherry Hill as Block 423.01, Lot 4, commonly known as 36 Kresson Road, Cherry Hill, New Jersey (the "Property").

Property. The legal description of the Property is attached hereto as Exhibit 'A".

Being the same land and premises which became vested in Gitomer & Martin, a Partnership, by deed from Anthony E. Calderetti and Theresa Calderetti, his wife, dated August 17, 1981, recorded on August 21, 1981, in the Camden County Clerk's Office in Deed Book 3794, Page 373 *et seq.*

Confirmatory Deed. The purpose of this Confirmatory Deed is to confirm that title is vested solely in Grantee, Irving Gitomer, the only individual with a partnership interest in Gitomer & Martin, and that all prior partners other than Irving Gitomer have assigned their interests in Gitomer & Martin to Irving Gitomer, the above named Grantee.

Promises by Grantor. Grantor promises that, except as set forth in this Deed, Grantor has done no act to encumber the Property. This promise is called a "covenant as to grantor's acts" (N.J.S.A. 46:4-6). This promise means that Grantor has not allowed anyone else to obtain any legal rights, which affect the Property (such as by making a mortgage or allowing a judgment to be entered against Grantor), except as stated above.

This is not an official document

Signature. This Deed is executed by Grantor as of the date and year at the top of the first page.

WITNESS :

GRANTOR:

GITOMER & MARTIN, a general partnership

By: Marcia Gitomer, Attorney-in-Fact for
Irving Gitomer, sole partner

This is not an official document

STATE OF NEW JERSEY :
: SS
COUNTY OF CAMDEN :

I CERTIFY that on June 13, 2011, Marcia Gitomer, Attorney-in-Fact for Irving Gitomer, personally came before me and acknowledged under oath, to my satisfaction, that this person (or if more one, each person):

(a) is named in and personally signed this Deed;

(b) signed, sealed and delivered this Deed as his or her act and deed; and

(c) made this Deed for $1.00 as the full and actual consideration paid or to be paid for the transfer of title. (Such consideration is defined in N.J.S.A. 46:15-5.)

DEBRA L. BAY
NOTARY PUBLIC OF NEW JERSEY
My Commission Expires 1/3/2015

GIT/REP-3
(6-10)

State of New Jersey

SELLER'S RESIDENCY CERTIFICATION/EXEMPTION

(C.55, P.L. 2004)

(Please Print or Type)

SELLER(S) INFORMATION (See Instructions, Page 2)

Name(s)

Gitomer & Martin

Current Resident Address:

Street: PO Box 424

City, Town, Post Office	State	Zip Code
Mt. Laurel	NJ	08054

PROPERTY INFORMATION (Brief Property Description)

Block(s)	Lot(s)	Qualifier
423.01	4	

Street Address:

36 Kresson Road

City, Town, Post Office	State	Zip Code
Cherry Hill	NJ	08034

Seller's Percentage of Ownership	Consideration	Closing Date
100%	$1.00	

This is not an official document

SELLER ASSURANCES (Check the Appropriate Box) (Boxes 2 through 8 apply to Residents and Non-residents)

1. ☐ I am a resident taxpayer (individual, estate, or trust) of the State of New Jersey pursuant to N.J.S.A. 54A:1-1 et seq. and will file a resident gross income tax return and pay any applicable taxes on any gain or income from the disposition of this property.
2. ☐ The real property being sold or transferred is used exclusively as my principal residence within the meaning of section 121 of the federal Internal Revenue Code of 1986, 26 U.S.C. s. 121.
3. ☐ I am a mortgagor conveying the mortgaged property to a mortgagee in foreclosure or in a transfer in lieu of foreclosure with no additional consideration.
4. ☐ Seller, transferor or transferee is an agency or authority of the United States of America, an agency or authority of the State of New Jersey, the Federal National Mortgage Association, the Federal Home Loan Mortgage Corporation, the Government National Mortgage Association, or a private mortgage insurance company.
5. ☐ Seller is not an individual, estate or trust and as such not required to make an estimated payment pursuant to N.J.S.A.54A:1-1 et seq.
6. ☒ The total consideration for the property is $1,000 or less and as such, the seller is not required to make an estimated payment pursuant to N.J.S.A. 54A:5-1-1 et seq.
7. ☐ The gain from the sale will not be recognized for Federal income tax purposes under I.R.C. Section 721, 1031, 1033 or is a cemetery plot. (CIRCLE THE APPLICABLE SECTION). If such section does not ultimately apply to this transaction, the seller acknowledges the obligation to file a New Jersey income tax return for the year of the sale (see instructions).

   ☐ No non-like kind property received.
8. ☐ Transfer by an executor or administrator of a decedent to a devisee or heir to effect distribution of the decedent's estate in accordance with the provisions of the decedent's will or the intestate laws of this state.

SELLER(S) DECLARATION

The undersigned understands that this declaration and its contents may be disclosed or provided to the New Jersey Division of Taxation and that any false statement contained herein could be punished by fine, imprisonment, or both. I furthermore declare that I have examined this declaration and, to the best of my knowledge and belief, it is true, correct and complete. By checking this box ☐ I certify that the Power of Attorney to represent the seller(s) has been previously recorded or is being recorded simultaneously with the deed to which this form is attached.

6/13/2011
Date

Marcia Gitomer
Signature
(Seller) Please indicate if Power of Attorney or Attorney in Fact

Date

Signature
(Seller) Please indicate if Power of Attorney or Attorney in Fact

RTF-1 (Rev. 7/14/10)
MUST SUBMIT IN DUPLICATE

STATE OF NEW JERSEY

AFFIDAVIT OF CONSIDERATION FOR USE BY SELLER

(Chapter 49, P.L.1968, as amended through Chapter 33, P.L. 2006) (N.J.S.A. 46:15-5 et seq.)

BEFORE COMPLETING THIS AFFIDAVIT, PLEASE READ THE INSTRUCTIONS ON THE REVERSE SIDE OF THIS FORM.

STATE OF NEW JERSEY
} SS.
COUNTY Camden County Municipal Code 0409

FOR RECORDER'S USE ONLY	
Consideration	$
RTF paid by seller	$
Date	By

MUNICIPALITY OF PROPERTY LOCATION Cherry Hill

*Use symbol "C" to indicate that fee is exclusively for county use.

(1) PARTY OR LEGAL REPRESENTATIVE *(Instructions #3 and #4 on reverse side)*

Deponent, Marcia Gitomer, Power of Attorney (Name), being duly sworn according to law upon his/her oath, deposes and says that he/she is the sole partner of Grantor (Grantor, Legal Representative, Corporate Officer, Officer of Title Company, Lending Institution, etc.) in a deed dated _____ transferring real property identified as Block number 423.01 Lot number 4 located at 36 Kresson Road, Cherry Hill, New Jersey (Street Address, Town) and annexed thereto.

(2) CONSIDERATION $ 1.00 *(Instructions #1 and #5 on reverse side)* ☒ no prior mortgage to which property is subject.

(3) Property transferred is Class 4A 4B 4C (circle one). If property transferred is Class 4A, calculation in Section 3A below is required.

(3A) **REQUIRED CALCULATION OF EQUALIZED VALUATION FOR ALL CLASS 4A (COMMERCIAL) PROPERTY TRANSACTIONS:**
(Instructions #5A and #7 on reverse side)

Total Assessed Valuation + Director's Ratio = Equalized Assessed Valuation

$_____ ÷ _____% = $_____

If Director's Ratio is less than 100%, the equalized valuation will be an amount greater than the assessed value. If Director's Ratio is equal to or in excess of 100%, the assessed value will be equal to the equalized valuation.

(4) FULL EXEMPTION FROM FEE *(Instruction #8 on reverse side)*
Deponent states that this deed transaction is fully exempt from the Realty Transfer Fee imposed by C. 49, P.L. 1968, as amended through C. 66, P.L. 2004, for the following reason(s). Mere reference to exemption symbol is insufficient. Explain in detail.
Consideration under $100

(5) PARTIAL EXEMPTION FROM FEE *(Instruction #9 on reverse side)*
NOTE: All boxes below apply to grantor(s) *only*. **ALL BOXES IN APPROPRIATE CATEGORY MUST BE CHECKED.** Failure to do so will void claim for partial exemption. Deponent claims that this deed transaction is exempt from State portions of the Basic, Supplemental, and General Purpose Fees, as applicable, imposed by C. 176, P.L. 1975, C. 113, P.L. 2004, and C. 66, P.L. 2004 for the following reason(s):

A. **SENIOR CITIZEN** Grantor(s) ☐ 62 years of age or over.* *(Instruction #9 on reverse side for A or B)*
B. **BLIND PERSON** Grantor(s) ☐ legally blind or; *
DISABLED PERSON Grantor(s) ☐ permanently and totally disabled ☐ receiving disability payments ☐ not gainfully employed*

Senior citizens, blind persons, or disabled persons must also meet **all of the following** criteria:
☐ Owned and occupied by grantor(s) at time of sale. ☐ Resident of State of New Jersey.
☐ One or two-family residential premises. ☐ Owners as joint tenants must all qualify.

*IN CASE OF HUSBAND AND WIFE, PARTNERS IN A CIVIL UNION COUPLE, ONLY ONE GRANTOR NEED QUALIFY IF TENANTS BY THE ENTIRETY.

C. **LOW AND MODERATE INCOME HOUSING** *(Instruction #9 on reverse side)*
☐ Affordable according to H.U.D. standards. ☐ Reserved for occupancy.
☐ Meets income requirements of region. ☐ Subject to resale controls.

(6) NEW CONSTRUCTION *(Instructions #2, #10, #12 on reverse side)*
☐ Entirely new improvement. ☐ Not previously occupied.
☐ Not previously used for any purpose. ☐ "NEW CONSTRUCTION" printed clearly at top of first page of the deed.

(7) RELATED LEGAL ENTITIES TO LEGAL ENTITIES *(Instructions #5, #12, #14 on reverse side)*
☐ No prior mortgage assumed or to which property is subject at time of sale.
☐ No contributions to capital by either grantor or grantee legal entity.
☐ No stock or money exchanged by or between grantor or grantee legal entities.

(8) Deponent makes this Affidavit to induce county clerk or register of deeds to record the deed and accept the fee submitted herewith in accordance with the provisions of Chapter 49, P.L. 1968, as amended through Chapter 33, P.L. 2006.

Subscribed and sworn to before me
this 17th day of June, 20 11

DEBRA L. BAY
NOTARY PUBLIC OF NEW JERSEY
My Commission Expires 1/3/2015

Marcia Gitomer
Signature of Deponent

Gitomer & Martin, Gen. Partnership
Grantor Name

301 Browning Lane, Cherry Hill
Deponent Address

PO Box 424, Mt. Laurel, NJ
Grantor Address at Time of Sale

XXX-XXX-
Last three digits in Grantor's Social Security Number

Name/Company of Settlement Officer

FOR OFFICIAL USE ONLY			
Instrument Number		County	
Deed Number		Book	Page
Deed Dated		Date Recorded	

County recording officers shall forward one copy of each RTF-1 form when Section 3A is completed to:
STATE OF NEW JERSEY
PO BOX 251
TRENTON, NJ 08695-0251
ATTENTION: REALTY TRANSFER FEE UNIT

The Director of the Division of Taxation in the Department of the Treasury has prescribed this form as required by law, and it may not be altered or amended without prior approval of the Director. For information on the Realty Transfer Fee or to print a copy of this Affidavit, visit the Division's website at: **www.state.nj.us/treasury/taxation/lpt/localtax.shtml**.

This is not an official document

DEED	:	Date: June 13, 2011
Gitomer & Martin	:	
Grantor,	:	Record and return to:
TO	:	Damien O. Del Duca, Esquire
	:	Del Duca Law Firm
Irving Gitomer	:	1010 Kings Highway South
	:	Building Two
Grantee.	:	Cherry Hill, New Jersey 08034

This is not an official document

EXHIBIT A
Legal Description

All that certain Lot, piece or parcel of land, with the buildings and improvements thereon erected, situate, lying and being in the Township of Cherry Hill, County of Camden, State of New Jersey:

BEGINNING at a point in the Southwesterly line of Public Road from Milford to Haddonfield, also known as Kresson Road or Avenue, corner to lands now or formerly Doctor Willard; thence North 73 degrees 30 minutes 00 seconds West along said Public Road a distance of 217.14 feet to a stake in same, said stake being 68 feet Southeastwardly from lands now or late of William Hooten; thence South 16 degrees 30 minutes 00 seconds West a distance of 134.72 feet to a stake corner to lands now or late Edward Stout; thence South 37 degrees 02 minutes 50 seconds East along said lands of Edward Stout a distance of 176.35 feet to a stake corner to lands of Doctor Willard; thence North 52 degrees 42 minutes 00 seconds East along said lands of Doctor Willard a distance of 296.79 feet to the point and place of BEGINNING.

Excepting thereout and therefrom:

BEGINNING at a point along a line common with Lot 13A, Block 123 (tax map) and abovementioned Lot 13, said point being the following courses and distances from the intersection of the Northwesterly right of way line of Willard Avenue (50 feet right of way) with the Southwesterly right of way line of Kresson Road (Camden County Route 671) (49.5 feet wide)

(A) Along the said row line of Kresson Road North 73 degrees 30 minutes 00 seconds West a distance of 509.1 feet to a point common to said Lots 13 and 13B, thence;

(B) Along line common to said Lots 13 and 13A South 16 degrees 30 minutes 00 seconds West a distance of 27.00 feet to a point and place of beginning, thence;

(1) South 73 degrees 30 minutes 00 seconds East a distance of 10.00 feet to a point, thence;

(2) South 16 degrees 30 minutes 00 seconds West a distance of 47.00 feet to a point, thence;

(3) North 73 degrees 30 minutes 00 seconds West a distance of 10.00 feet to a point, thence;

(4) North 16 degrees 30 minutes 00 seconds East a distance of 47.00 feet to a point and place of BEGINNING.

NOTE: Being Lot(s) **4**, Block: **423.01**, Tax Map of the **Township of Cherry Hill, County of Camden, State of New Jersey.**

NOTE: Lot and Block shown for informational purposes only.

This is not an official document